Records Management and Data Retention Policy

Ashcombe Vale Housing Association

Policy owner	Data Protection Officer
Approved by	Audit and Risk Committee, 14 October 2026
Version	2.4
Next review	October 2028
Applies to	All staff, board members, volunteers and contractors

1. Purpose

Ashcombe Vale Housing Association (“the Association”) creates and receives records about tenants, applicants, staff, properties and its own governance. This policy sets out how long those records are kept, who is responsible for them and how they are destroyed when they are no longer needed. Keeping records for the right length of time helps the Association to meet its legal obligations, to defend legal claims and to protect the privacy of the people it serves.

2. Scope

This policy applies to all records created, received or held by the Association in any format, including paper files, emails, case management systems, shared drives, photographs and CCTV recordings. It also covers records that contractors hold on the Association’s behalf, such as repair reports and gas safety certificates. It applies wherever the records are held, including at home and on mobile devices.

3. Roles and responsibilities

- The Board has overall accountability for compliance with data protection law and approves this policy.
- The Data Protection Officer owns this policy, maintains the retention schedule and advises managers on how to apply it.
- Heads of service make sure that records in their area are kept, reviewed and destroyed in line with the schedule.
- All staff must file records in the approved systems and must not keep personal copies of records about tenants or colleagues.
- The IT service manages backups and makes sure that deleted records are removed from backups within the backup cycle.

4. Principles

- Records are kept only for as long as there is a business or legal reason to keep them.
- The retention period starts from the trigger event shown in the schedule, not from the date the record was created.
- Where a record falls under more than one category, the longest retention period applies.
- Personal data must never be stored on removable media unless the media are encrypted.
- Records of continuing historical value may be transferred to the county record office instead of being destroyed.

5. Retention schedule

The following schedule applies to the main categories of records. Records that are not listed are kept for six years after the last action on them, unless the Data Protection Officer agrees a different period in writing.

Record type	Examples	Retention	Trigger	Disposal
Tenancy files	Tenancy agreement, sign-up documents, correspondence	6 years	End of tenancy	Confidential shredding
Rent accounts	Rent statements, arrears letters, payment plans	6 years	End of financial year	Secure deletion
Housing applications (unsuccessful)	Application form, supporting evidence	1 year	Date of decision	Secure deletion
Anti-social behaviour cases	Incident logs, witness statements, injunction papers	6 years	Case closure	Confidential shredding
Safeguarding referrals	Referral forms, case notes, agency correspondence	10 years	Case closure	Confidential shredding
Repairs records	Job tickets, inspection notes, contractor invoices	6 years	Completion of repair	Secure deletion
Disability adaptations	Occupational therapy referrals, works orders	6 years	End of tenancy	Secure deletion
Gas safety records	Annual landlord gas safety certificates	3 years	Date of check	Secure deletion
Fire risk assessments	Assessments, action plans, fire door inspections	10 years	Date of assessment	Review before disposal
Asbestos surveys	Survey reports, register entries	40 years	Date of survey	Review before disposal
Property deeds	Title documents, transfers, leases	Permanent	–	Not applicable
Shared ownership sales	Applications, valuations, completion documents	12 years	Completion of sale	Secure deletion
Service charge accounts	Annual statements, certified accounts	6 years	End of financial year	Secure deletion
CCTV recordings	Footage from estate and office cameras	14 days	Date of recording	Automatic overwrite
Call recordings	Customer contact centre recordings	90 days	Date of call	Automatic deletion
Complaints	Complaint form, investigation notes, response	6 years	Case closure	Secure deletion
Tenant satisfaction surveys	Survey responses, panel notes	2 years	End of survey year	Secure deletion
Personnel files	Contract, appraisals, training records	6 years	End of employment	Confidential shredding
Grievance and disciplinary records	Investigation notes, hearing notes, outcome letters	6 years	Case closure	Confidential shredding
Unsuccessful job applicants	CV, application form, interview notes	6 months	Date of decision	Secure deletion
Payroll records	Payslips, tax and pension records	6 years	End of tax year	Secure deletion
Accident records	Accident book entries, near-miss reports	3 years	Date of entry	Secure deletion
Board papers	Agendas, minutes, reports, declarations of interest	Permanent	–	Transfer to archive
Supplier contracts	Contracts, variations, tender documents	6 years	End of contract	Secure deletion

Record type	Examples	Retention	Trigger	Disposal
Contracts executed as deeds	Development and building contracts	12 years	End of contract	Secure deletion
Insurance policies	Employers’ liability policies and certificates	40 years	End of policy	Review before disposal
Data protection requests	Subject access requests and responses	2 years	Date of response	Secure deletion
Website and app analytics	Aggregated usage statistics	26 months	Date of collection	Automatic deletion

6. Disposal

Records must be destroyed securely when their retention period ends. Paper records containing personal data are placed in locked confidential waste bins and shredded by the approved contractor, who provides a certificate of destruction. Electronic records are deleted from live systems and drop out of backups within ninety days. A disposal log records the record category, the date range, the method and the name of the person who authorised the destruction.

7. Legal holds

When the Association is aware of litigation, a regulatory investigation or a complaint to the housing ombudsman, the Data Protection Officer may place a legal hold on the relevant records. **Records subject to a legal hold must not be destroyed, even if their retention period has expired.** The hold is lifted in writing when the matter has been concluded.

8. Breaches of this policy

Destroying records early, or keeping them longer than necessary, may breach data protection law. Staff who become aware of such a breach must report it to the information governance mailbox at once. Deliberate breaches may lead to disciplinary action.

9. Review

This policy is reviewed every two years, or sooner if the law or the Association’s systems change. The Data Protection Officer reports on compliance with the retention schedule to the Audit and Risk Committee once a year.